



FIFRA 24(c) Special Local Need Label

GoalTender[®]

EPA Reg. No. 92894-3-71368

24(c) Special Local Need Registration SLN PA-200002

For Postemergence Use in Broccoli, Cabbage, and Cauliflower
(For Distribution and Use Only in the State of Pennsylvania)

Conditions and Risks of Use for Special Local Need

USE OF GoalTender[®] HERBICIDE (THE "PRODUCT") ON BROCCOLI, CAULIFLOWER AND CABBAGE (THE "CROP") FOR THIS SPECIAL LOCAL NEED MAY RESULT IN CROP INJURY, CROP YIELD REDUCTION AND/OR CROP LOSS AS FURTHER DISCUSSED BELOW. READ AND UNDERSTAND THESE CONDITIONS AND RISKS OF USE FOR SPECIAL LOCAL NEED BEFORE USING THE PRODUCT ON THE CROP.

This Product is available for use in the manner described in this Supplemental Labeling on the basis that, in the sole opinion of the user, the benefits and utility derived from the use of the Product on the Crop outweigh the potential risk of Crop injury, Crop yield reduction or Crop loss. The decision to use this Product in the manner described in this Supplemental Labeling must be made by each individual user on the basis of anticipated benefits versus (i) the potential risk of Crop injury, Crop yield reduction and Crop loss, (ii) the severity of the target pest infestation, (iii) the cost and availability of alternative pest controls and (iv) any other relevant factors.

By purchasing the Product for use, or using the Product, in the manner described in this Supplemental Labeling, you acknowledge and accept that, to the extent permitted by law:

- (1) you assume all risk of Crop injury, Crop yield reduction and Crop loss;
- (2) Nufarm Americas, Inc. does not make, and do not authorize any agent or representative to make, any representations or recommendations regarding the use of this Product on the Crop other than the statements on this Supplemental labeling;
- (3) Nufarm Americas, Inc. does not make, and do not authorize any agent or representative to make, any warranties, express or implied, with respect to the use of the Product on the Crop and disclaim all warranties, expressed or implied, including any implied warranty of merchantability;
- (4) Nufarm Americas, Inc. disclaims all liability for any damages, losses, expenses, claims or causes of actions arising out of or relating to Crop injury, Crop yield reduction and/or Crop loss;
- (5) these Conditions and Risks of Use for Special Local Need supersede any contrary representations or recommendations by Nufarm Americas, Inc. , or its respective agents or representatives, and any provisions in or on any Product literature or labeling including any provisions on the label affixed to the Product container.

If these Conditions and Risks of Use for Special Local Need are not acceptable, the unopened Product may be returned to the seller for a refund or used for a different labeled use in accordance with the label affixed to the Product container.

These Conditions and Risks of Use for Special Local Need are required by Nufarm Americas, Inc. and not specified by the US EPA or the State of Pennsylvania.

ATTENTION

- It is a violation of Federal law to use this product in a manner inconsistent with its labeling.
- This label must be in the possession of the user at the time of pesticide application.
- Read this SLN labeling and the label affixed to the container for GoalTender™ herbicide before applying. All applicable use directions, precautions and restrictions on this SLN labeling and the label affixed to the product container must be followed.

Directions for Use

This product will not be used to formulate an end-use product with a limit single application rate greater than 1.5 lb ai/acre or an annual maximum application rate of 2 lb ai/acre.

Not for formulation into residential use products.

GoalTender herbicide may be applied as a broadcast or directed spray for the postemergence suppression/control of susceptible broadleaf weed species in direct-seeded or transplanted broccoli, cabbage, and cauliflower.

Crop Tolerance Information: Broccoli, cabbage, and cauliflower are tolerant to postemergence applications of GoalTender; however, under certain conditions, GoalTender can cause severe crop injury. Application to crops grown under very mild (cool, cloudy) conditions can produce leaf cupping, crinkling, stunting, spotting, or necrotic lesions. When injury occurs, it is usually limited to the treated leaves with new leaves emerging undamaged. Delay in crop development and/or maturity, and yield reduction can result under these conditions.

Do not use GoalTender on plants that are weakened or are under stress due to temperature, disease, fertilizer, soil, salts, nematodes, insects, pesticides, drought, excessive moisture, flooding, or soil crusting.

Application Rate, Timing and Method of Application: Apply GoalTender as a broadcast postemergence application at the rate of 4 to 6 fl oz per acre (0.125 to 0.188 lb active). GoalTender may also be applied as a directed application at a rate of 4 to 8 fl oz per acre (0.125 to 0.25 lb active). Directed applications are those where spray mixtures are applied in such a way as to minimize contact to crop leaves, directing the spray toward the soil at the base of the crop.

Do not use backpack sprayers for foliar applications. All applications from backpack sprayers should be directed at the ground.

For direct-seeded crops apply when the crop reaches a minimum of four true leaves. For transplanted crops apply after a minimum of two weeks after planting.

For postemergence use in broccoli, cabbage, and cauliflower do not mix GoalTender with adjuvants (oils, surfactants), liquid fertilizer or pesticides.

Apply only with ground equipment in a spray volume of 20 gallons or more of water per acre. Increase the spray volume to ensure complete and uniform coverage as weed height and density increases. Use a low-pressure sprayer equipped with flat fan nozzles operated at the manufacturer's recommended pressure.

Weeds Controlled or Suppressed Postemergence: GoalTender provides postemergence control/suppression of the following weeds when used at recommended dosages:

Common Name	Scientific Name
groundsel, common	<i>Senecio vulgaris</i>
lambsquarter, common	<i>Chenopodium album</i>
nightshade, black	<i>Solanum nigrum</i>
pigweed, redroot	<i>Amaranthus retroflexus</i>
purslane, common	<i>Portulaca oleracea</i>
shepherdspurse	<i>Capsella bursa-pastoris</i>
sowthistle, annual	<i>Sonchus oleraceus</i>

Cultural Considerations: Best weed control results when GoalTender is applied to young (1-4 leaf), actively growing weeds.

Use Restrictions

In addition of General Use Restrictions in the product label for GoalTender, the following use restrictions must be observed:

- For direct-seeded crops, do not apply more than 8 fl oz per acre (0.25 lb active) per crop as a post emergence treatment.
- For transplanted crops, do not apply more than 8 fl oz per acre (0.25 lb active) per crop as a post-transplant treatment. If a pre-transplant (preplant) treatment has previously been made, the combination of pre-plus post-transplant treatments must not exceed 16 fl oz per acre per season (0.5 lbs active).
- Do not add any adjuvant or liquid fertilizer to the spray mixture.
- For postemergence use in broccoli and cauliflower do not mix GoalTender with adjuvants (oils, surfactants), liquid fertilizer or pesticides.
- Do not apply within 35 days of harvest.
- Do not apply when weather conditions favor drift. Avoid drift to all nontarget areas. GoalTender is phytotoxic to susceptible plant foliage.
- **Chemigation:** Under this SLN label, do not apply this product through any type of irrigation system.
- Avoid application if heavy rainfall is predicted to occur within 48 hours after planned application.
- The use directions under this SLN label supersede the Section 3 label prohibitions for broccoli and cauliflower.
- Do not enter or allow worker entry into treated areas during the restricted entry interval (REI) of 24 hours.
- Do not make applications using mechanically pressurized handgun equipment.
- Do not apply during rain.

Non-target Organism Advisory: This product is toxic to plants and may adversely impact the forage and habitat of non-target organisms, including pollinators, in areas adjacent to the treated site. Protect the forage and habitat of non-target organisms by following label directions intended to minimize spray drift.

Surface Water Advisory: This product may impact surface water quality due to runoff of rainwater. This is especially time for poorly draining soils and soils with shallow ground water. This product is classified as having a medium potential for reaching both surface water and aquatic sediment via runoff for several months or more after application. A level, well-maintained vegetative buffer strip between areas to which this product is applied and surface water features such as ponds, streams, and springs will reduce the potential loading of oxyfluorfen from runoff water and sediment. Runoff of this product will be reduced by avoiding applications when rainfall or irrigation is expected to occur within 48 hours.

MANDATORY SPRAY DRIFT MANAGEMENT

Aerial Applications:

- Do not release spray at a height greater than 10 ft above the ground or vegetative canopy unless a greater application height is necessary for pilot safety.
- Applicators must select nozzle and pressure that deliver coarse or coarser droplets in accordance with American Society of Agricultural & Biological Engineers Standard 641 (ASABE S641).
- During application, the Sustained Wind Speed, as defined by the National Weather Service (standard averaging period of 2 minutes) must register between 3 and 15 miles per hour.
- Wind speed and direction must be measured on location using a windsock, an anemometer, or an aircraft smoke system.
- Wind speed must be measured at the release height or higher, in an area free from obstructions such as trees, buildings, and farm equipment.
- If the windspeed is 10 miles per hour or less, applicators must use a minimum of $\frac{1}{2}$ swath displacement upwind at the downwind edge of the field. When the windspeed is between 11-15 miles per hour, applicators must use a minimum of $\frac{3}{4}$ swath displacement upwind at the downwind edge of the field.
- If max wind speed is up to 10 mph, use: The boom length must be 75% or less of the wingspan for fixed-wing aircraft and 90% or less of the rotor diameter for helicopters.
- If max wind speed is up to 15 mph, use: When the windspeed is between 11-15 miles per hour, the boom length must be 65% or less of the wingspan for fixed wing aircraft and 75% or less of the rotor diameter for helicopters. Otherwise, the boom length must be 75% or less of the wingspan for fixed-wing aircraft and 90% or less of the rotor diameter for helicopters.

- Do not apply during temperature inversions.

• Do not apply within 150 feet of any conservation areas when wind is blowing toward the conservation area. Conservation areas include public lands and parks, national and state wilderness areas and wildlife refuges, national and state forests, and national and state grasslands. Any land between the conservation areas and the application area can be included in the buffer (including Conservation Reserve Program (CRP) and Agricultural Conservation Easement Program (ACEP) areas).

Applications made to agricultural fields located within a conservation area are acceptable when made in accordance with an approved pesticide management plan for the conservation area and the restrictions on this label.

A 50% reduction in the wind-directional buffer distance required above can be made if a windbreak or shelterbelt (e.g., trees or riparian hedgerows) between the application site and conservation area is present and meets the following criteria:

- o The windbreak or shelterbelt must be downwind between the pesticide application and the conservation area.
- o The windbreak or shelterbelt must have a minimum of one row of trees and/or shrubs that have foliage is sufficiently dense such that the aquatic habitat is not visible on the upwind side at the time of application.
- o The row(s) of trees and/or shrubs in the windbreak/shelterbelt must run the full length of the treated crop and must have foliage that is sufficiently dense such that the conservation area is not visible on the upwind side.
- o The height of the trees in the windbreak or shelterbelt must be at a height higher than the release height of the application.
- o The windbreak or shelterbelt must be planted according to local/regional/federal conservation program standards; however, no state or federally listed noxious or invasive trees or shrubs should be planted.
- o The windbreak or shelterbelt must be maintained such that their functionality is not compromised.

A manmade structure (e.g., curtain that is raised prior to application, building) can be used instead of a windbreak or shelterbelt. This structure must be downwind between the pesticide application and the conservation area, cover the entire distance of field adjacent to the conservation area, and higher than the release height of the application.

Ground Boom Applications:

- During application, the Sustained Wind Speed, as defined by the National Weather Service (standard averaging period of 2 minutes), must register between 3 and 15 miles per hour.
- Wind speed and direction must be measured on location using a windsock or anemometer. Wind speed must be measured at the release height or higher, in an area free from obstructions such as trees, buildings, and farm equipment.
- Do not release spray at a height greater than 4 feet above the ground or crop canopy.
- Applicators must select a nozzle and pressure that deliver coarse or coarser droplets in accordance with American Society of Agricultural & Biological Engineers Standard 572 (ASABE S572).
- Do not apply during temperature inversions.

Do not apply within 50 feet of any conservation areas (e.g., public lands and parks, Wilderness Areas, National Wildlife Refuges, reserves, conservation easements) unless using a hooded spray boom. When using a hooded spray boom, do not apply within 25 feet of these protected areas.

A 50% reduction in the wind-directional buffer distance required above can be made if a windbreak or shelterbelt (e.g., trees or riparian hedgerows) between the application site and conservation area is present and meets the following criteria:

- The windbreak or shelterbelt must be downwind between the pesticide application and the conservation area.
- The windbreak or shelterbelt must have a minimum of one row of trees and/or shrubs that have foliage is sufficiently dense such that the aquatic habitat is not visible on the upwind side at the time of application.
- The row(s) of trees and/or shrubs in the windbreak/shelterbelt must run the full length of the treated crop and must have foliage that is sufficiently dense such that the conservation area is not visible on the upwind side.
- The height of the trees in the windbreak or shelterbelt must be at a height higher than the release height of the application.
- The windbreak or shelterbelt must be planted according to local/regional/federal conservation program standards; however, no state or federally listed noxious or invasive trees or shrubs should be planted.
- The windbreak or shelterbelt must be maintained such that their functionality is not compromised.

A manmade structure (e.g., curtain that is raised prior to application, building) can be used instead of a windbreak or shelterbelt. This structure must be downwind between the pesticide application and the conservation area, cover the entire distance of field adjacent to the conservation area, and higher than the release height of the application.

- A 50% reduction in buffer distance can be made if: the application is made with a hooded sprayer; or,
- A 75% reduction in buffer distance can be made if a hooded sprayer is used and a downwind windbreak is present and higher than the release height.

TEMPERATURE AND HUMIDITY

When making applications in hot and dry conditions, use larger droplets to reduce effects of evaporation.

WEED RESISTANCE MANAGEMENT

For resistance management, this product contains a Group 14 herbicide – Oxyfluorfen. Any weed population may contain or develop plants naturally resistant to this product and other Group 14 herbicides. The resistant biotypes may dominate the weed population if these herbicides are used repeatedly in the same field. Appropriate resistance-management strategies should be followed. When herbicides that affect the same biological site of action are used repeatedly over several years to control the same weed species in the same field, naturally-occurring resistant biotypes may survive a correctly applied herbicide treatment, propagate, and become dominant in that field. Adequate control of these resistant weed biotypes cannot be expected. If weed control is unsatisfactory, it may be necessary to retreat the problem area using a product affecting a different site of action.

To delay herbicide resistance take one or more of the following steps:

- Rotate the use of this product or other Group 14 herbicides within a growing season sequence or among growing seasons with different herbicide groups that control the same weeds in a field.
- Use tank mixtures with herbicides from a different group if such use is permitted; where information on resistance in target weed species is available, use the less resistance-prone partner at a rate that will control the target weed(s) equally as well as the more resistance-prone partner. Consult your local extension service or certified crop advisor if you are unsure as to which active ingredient is currently less prone to resistance.
- Adopt an integrated weed-management program for herbicide use that includes scouting and uses historical information related to herbicide use and crop rotation, and that considers tillage (or other mechanical control methods), cultural (e.g., higher crop seeding rates; precision fertilizer application method and timing to favor the crop and not the weeds), biological (weed-competitive crops or varieties) and other management practices.
- Scout before and after herbicide application to monitor weed populations for early signs of resistance development. Indicators of possible herbicide resistance include: (1) failure to control a weed species normally controlled by the herbicide at the dose applied, especially if control is achieved on adjacent weeds; (2) a spreading patch of non-controlled plants of a particular weed species; (3) surviving plants mixed with controlled individuals of the same species. If resistance is suspected, prevent weed seed production in the affected area by an alternative herbicide from a different group or by a mechanical method such as hoeing or tillage. Prevent movement of resistant weed seeds to other fields by cleaning harvesting and tillage equipment when moving between fields, and planting clean seed.
- If a weed pest population continues to progress after treatment with this product, discontinue use of this product, and switch to another management strategy or herbicide with a different mode of action, if available.
- Contact your local extension specialist or certified crop advisors for additional pesticide resistance-management and/or integrated weed-management recommendations for specific crops and weed biotypes.
- Report any incidence of non-performance or suspected resistance of this product against a particular weed to your local Nufarm representative, local retailer, or county extension agent.

It is advisable to keep accurate records of pesticides applied to individual fields to help obtain information on the spread and dispersal of resistant biotypes. Contact your local sales representative, crop advisor, or extension agent to find out if suspected resistant weeds to this MOA have been found in your region. Do not assume that each listed weed is being controlled by this mechanisms of action. Co-formulated active ingredients are intended to broaden the spectrum of weeds that are controlled. Some weeds may be controlled by only one of the active ingredient in this product.

Suspected herbicide-resistant weeds may be identified by these indicators:

- Failure to control a weed species normally controlled by the herbicide at the dose applied, especially if control is achieved on adjacent weeds;
- A spreading patch of non-controlled plants of a particular weed species; and
- Surviving plants mixed with controlled individuals of the same species.

VEGETATIVE FILTER STRIPS

For western irrigated agriculture, a vegetative filter strip is not required. Western irrigated agriculture is defined as irrigated farmland in the following states: WA, OR, CA, ID, NV, UT, AZ, MT, WY, CO, NM, and TX (west of I-35). In all other states, construct and maintain a vegetative filter strip, according to the width specified below, of grass or other permanent vegetation between the field edge and nearby down gradient aquatic habitat (such as, but not limited to, lakes; reservoirs; rivers; streams; marshes or natural ponds; estuaries; and commercial fish farm ponds).

Only apply products containing oxyfluorfen onto fields where a maintained vegetative filter strip of at least 30 feet exists between the field edge and down-gradient aquatic habitat. This minimum required width of 30 feet may be reduced or removed under the following conditions:

- The vegetative filter strip requirement may be reduced from 30 feet to 15 feet if at least one of the following applies:
 - the area of application is considered prime farmland (as defined in 7 C.F.R. § 657.5).
 - conservation tillage is being implemented on the area of application. Conservation tillage is defined as any system that leaves at least 30% of the soil surface covered by residue after planting. Conservation tillage practices can include mulch-till, no-till, or strip-till.
 - a functional terrace system is maintained on the area of application.
 - water and sediment control basins for the area of application are functional and maintained, and/or
 - the area of application is less than or equal to 10 acres.

Advisory Best Management Practices for Pollinator Protection

The following best management practices (BMPs) can help reduce risk to pollinators:

- Developing and maintaining clear communication with local beekeepers to help protect bees. To the extent possible, advise beekeepers within a 1-mile radius 48-hrs in advance of the application, and confirm hive locations before spraying.
- Avoiding applications during bloom.
- Avoiding applications when bees are actively foraging.
- Applying pesticides in the evening or early morning hours when fewer bees are foraging.
- Using Pollinator Protection Plans when they are available. These plans may be available from state lead agencies and promote communication between growers, landowners, farmers, beekeepers, pesticide users, and other pest management professionals to reduce exposure of bees and other pollinators to pesticides.
- Using integrated pest management to prevent or mitigate potential negative effects to pollinators and consider multiple management options before resorting to a pesticide application.
- Avoiding applying pesticides to plants in bloom, including flowering weeds.
- Mowing understory weeds or cover crops in orchards and vineyards can prevent flowering of weeds and reduce exposure to bees where and when pesticides are applied.

The following BMPs can help promote the health and habitat of ground-nesting bees:

For uncultivated land, leaving large undisturbed patches of land unmowed and untilled can provide nesting and forage sites.

For uncultivated land, mowing at the highest cutting height possible (minimum of 8-10 inches if possible) can increase and diversify food sources.

For additional resources on pollinator BMPs and Pollinator Protection Plans, visit

<https://www.epa.gov/pollinator-protection/find-best-management-practices-protect-pollinators>.

This label expires and must not be distributed or used in accordance with this SLN registration after 12/31/2030.

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Approved:
Replaces:

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